

25PSCV04674 25PSCV04674

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Brandy Allah v. FEDEX Ground Package System, Inc., et al., Case No. 25PSCV04674

ORDER ON MOTION TO CORRECT FILING DATE

Plaintiff's Motion to Correct the Filing Date and Deem Complaint Filed on December 8, 2025 is GRANTED.

Background

Plaintiff Brandy Allah ("Plaintiff") alleges that she was injured in a motor vehicle accident when she was rear-ended by Defendants while stopped on the eastbound Interstate 10. Plaintiff filed a complaint against Defendants FedEx Ground Package System, Inc., D-Tex Transport Inc. and Abraham Castellanos alleging (1) negligence; (2) negligent supervision, hiring and retention and (3) negligent entrustment.

Pending before the Court is Plaintiff's motion to correct the filing date and deem the complaint filed on December 8, 2025.

Legal Standard

"The court may, upon motion of the injured party, or its own motion, correct clerical mistakes in its judgment or orders as entered, so as to conform to the judgment or order directed, and may, on motion of either party after notice to the other party, set aside any void judgment or order." (Code of Civ. Proc., §473, subd. (d).)

"It is well settled that a court has the inherent power to correct a clerical error in its judgment so that the judgment will reflect the true facts. The power of a court to correct clerical mistakes in judgments is also a statutory power pursuant to section 473." (Estate of Douglas (2022) 83 Cal.App.5th 690, 695.)

"A clerical error in the judgment includes inadvertent errors made by the court which cannot reasonably be attributed to the exercise of judicial consideration or discretion. Clerical error is to be distinguished from judicial error which cannot be corrected by amendment. The distinction between clerical error and judicial error is whether the error was made in rendering the judgment, or in recording the judgment rendered. Any attempt by a court, under the guise of correcting clerical error, to revise its deliberately exercised judicial discretion is not permitted. A judicial error is the deliberate result of judicial reasoning and determination. The term 'clerical error' covers all errors, mistakes, or omissions which are not the result of the exercise of the judicial function. If an error, mistake, or omission is the result of inadvertence, but for which a different judgment would have been rendered, the error is clerical and the judgment may be corrected." (Estate of Douglas, supra, 83 Cal.App.5th at

“Where . . . the defect . . . is insubstantial, the clerk should file the complaint and notify the attorney or party that the perceived defect should be corrected at the earliest opportunity. That should create no more difficulty than returning all the documents with a notice pointing out the defects. . . The functions of the clerk are purely ministerial. The clerk has no discretion to reject a complaint that substantially conforms to the local rules.” (Rojas v. Cutsforth (1998) 67 Cal.App.4th 774, 777–778.) A “paper is deemed filed when it is deposited with the clerk with directions to file the paper.” (Id. at 778.) The clerk does not have the authority to reject a complaint that is filed in conformity with the state court rules but fails to comply with a local rule. (Carlson v. State of California Department of Fish & Game (1998) 68 Cal.App.4th 1268, 1272-1273 (clerk had no authority to reject complaint for filing based on failure to include Certificate of Assignment required by local rule).)

“If the clerk does not file a document because it does not comply with applicable filing requirements or because the required filing fee has not been paid, the court must promptly send notice of the rejection of the document for filing to the electronic filer. The notice must state the reasons that the document was rejected for filing.” (Cal. Rules of Ct. Rule 2.259(b).)

Discussion

Plaintiff submitted her complaint for filing on December 8, 2025 and it was rejected because there was no email address. Plaintiff resubmitted her complaint on December 16, 2025 and it was rejected because of defects in the Civil Case Cover Sheet Addendum. Plaintiff asks that the Court correct the filing date to reflect either filing of the complaint on December 8, 2025 or December 16, 2025.

As noted in the prior section, as a general matter, a clerk’s role is entirely ministerial and a paper is deemed filed on the date it was submitted for filing. (Rojas, supra, 67 Cal.App.4th at 777–778.) That said, California Rules of Court, Rule 2.118 provides that the clerk “must not accept for filing or file any papers that do not comply with the rules in this chapter,” except under certain specified circumstances. (Cal. Rules of Ct. Rule 2.118, subd. (a).) As relevant here, the only rule in the applicable chapter (“Chapter 1. Papers”) requiring the submission of an email address is Rule 2.111(1), which requires that an e-mail address be included on the first page. However, Rule 2.118 later provides that a clerk “must not reject a paper for filing solely on the ground that it does not contain an attorney’s or party’s fax number or e-mail address on the first page.” (Cal. Rules of Ct. Rule 2.118, subd. (b).) Accordingly, under Rule 2.118, the failure to furnish an email address did not provide a valid basis for the clerk to reject the filing. Finally, even if there were a violation of the rules, “for good cause shown, the court may permit the filing of papers that do not comply with the rules in this chapter.” (Ca. Rules of Ct. Rule 2.118, subd. (c).)

Based on the aforementioned authority and the circumstances of the case, Plaintiff’s Motion to Correct the Filing Date and Deem Complaint Filed on December 8, 2025 is GRANTED.